IN THE DISTRICT COURT A KOFORIDUA HELD ON TUESDAY THE 8TH DAY OF JULY 2025 BEFORE HER WORSHIP NANA AMA DABBAH FYNN NKANSAH (MRS)

SUIT NO. A2/59/2024

EMMANUEL AGYEI ASANTE
H/NG/B/22E
NEW GBAWE, ACCRA

VRS

AGYAPADDO CONSTRUCTION LTD
UNNUMBERED HOUSE
KOFORIDUA, E/R

JUDGMENT

The Plaintiff per his Writ of Summons issued on 20/10/2023 commenced this action and sought the following reliefs:

1. An order directed at the Defendant for the performance of the contract by supplying the Plaintiff with 500bags of cement already paid for by him(Plaintiff)

2. In the alternative, an order for the payment of an amount of money that is the current price of five hundred (500) bags of cement with interest.

3. General damages for breach of contract.

4. Costs including legal fees.

PLAINTIFF'S CASE

It is the case of the Plaintiff that in May 2020, during the construction of his building, he was approached by an officer of the Defendant company with a proposal to purchase cement from the Defendant, given the proximity of their branch office. The Plaintiff contends that he informed the said representative, one Mr. Asare Ansah, that he had already procured 1,000 bags of cement elsewhere but would consider purchasing from the Defendant on condition that the Defendant would retain custody of the cement until such time as the Plaintiff required delivery.

The Plaintiff avers that this arrangement was accepted by Mr. Asare Ansah, following which he requested the Defendant's account details in order to make payment for 500 bags of cement. The Plaintiff further states that Mr. Ansah undertook to obtain the necessary bank details from the Defendant's accounts department and subsequently provided same to the Plaintiff. Upon receipt of the account details, the Plaintiff issued a cheque dated 27th May 2020 in the sum of GHS 17,850.00, which he deposited into the Defendant's bank account as payment for the 500 bags of cement.

The Plaintiff asserts that in June 2020, upon making enquiries for collection of the cement, he was informed by the Defendant that although his payment had been received, the deposited amount was insufficient to purchase 500 bags of cement at the prevailing price. The Plaintiff maintains that the Defendant's failure to deliver the agreed quantity of cement despite receipt of the funds necessitated the institution of the present action.

DEFENDANT'S CASE

The Defendant's case is that while they do not dispute receipt of the Plaintiff's deposit of GHS 17,850.00 into their bank account, they contend that the Plaintiff failed to adhere to the established purchasing procedure required by the company. The Defendant avers that the Plaintiff only approached them in June 2020 seeking delivery of 500 bags of cement, at which point he was informed that the amount he had paid was insufficient to purchase the said quantity of cement at the prevailing price as of the date of payment. The Defendant asserts that the Plaintiff was advised to collect a refund of his deposit, which he declined.

The Defendant denies the existence of any agreement, as alleged by the Plaintiff, with their representative, Mr. Asare Ansah, regarding the storage and future delivery of cement. The Defendant maintains that the Plaintiff, being a prior customer, had obtained their invoice and bank account details independently from previous transactions. Accordingly, the Defendant argues that the Plaintiff is not entitled to the reliefs sought in this action.

LAW ON THE STANDARD OF PROOF.

The ***"Standard of Proof"*** in civil matters is unambiguously stated in the **EVIDENCE ACT, 1975 (NRCD 323)** to be ***"proof on the preponderance of probabilities"***. It is settled that a party who asserts the occurrence and/or existence of a state of fact has the burden of proof on that assertion and must adduce enough evidence to avoid a ruling against him/her on that matter.

On the authority of **ABBEY VRS. ANTWI (2010) SCGLR** 16 at holding 2 the Honorable Court held that:

"It is trite that where a party makes an assertion capable of proof in a certain way e.g. by producing documents, description of things or references to other facts, instances or circumstances and his averment is denied, he does not prove it by merely going into the witness box and repeating that averment on oath, or having it repeated by his witness. He proves it by producing other evidence of facts and circumstances, from which the court can be satisfied that what he avers is true."

See the cases of **MAJOLAGBE VRS. LARBI AND OTHERS (1957) GLR 190** and the case of **SARKODIE VRS. FKA COMPANY LTD (2009) SCGLR 65**, where the Honorable Court reiterated, the relevant portions of the ***Evidence Act, ACT 323 sections 11 and 12*** as follows;

11(4) "in other circumstances the burden of producing evidence require a party to produce sufficient evidence so that on all the evidence a reasonable mind could conclude that the existence of the fact was more probable than its non-existence."

12(1) "Except as otherwise provided by law, the burden of persuasion requires proof by a preponderance of the probabilities
12(2) "preponderance of the probabilities" means that degree of certainty of belief in the mind of the tribunal of fact or the court by which it is conceived that the existence of a fact is more probable than its non-existence".

From the facts of the respective parties, the main issue which is set for the Court to determine is whether or not the Plaintiff is entitled to his reliefs.

To start with, Plaintiff maintained throughout the trial that he dealt with one Mr Asare Ansah who was the manager of the Defendant's branch near the Poly area. From the evidence adduced, though the Defendant denies the fact that there was such an

agreement between the Plaintiff and the said Mr. Ansah, Defendant admits that the said Mr. Ansah was an officer (overall supervisor) at the said branch in question.

Much as Plaintiff could not call the said Mr. Ansah to substantiate these facts, Plaintiff denies being a customer of the Defendant as Defendant claims and testified that this transaction was the very first time he dealt with Defendant company. The question then is, how could the Plaintiff have received the bank details of the Defendant and just decide to deposit an amount of GHS 17,850 into same without any prior communication of a sort? Again, the parties both admit that Plaintiff approached the Defendant in June 2020, which is the very month which the deposit was made to claim his bags of cement.

However, the Plaintiff, who informed the court of having Whatsapp conversations between himself and the said Mr. Asare Ansah when confronted with such stern denial of the actual contents of the agreement, could not tender copies of these Whatsapp conversations in court or take steps to call the said Mr. Ansah as awitness or even pray the court to subpoena him. Thus, the court finds that the Plaintiff by himself, on the preponderance of probabilities could not prove the actual contents of the agreement between himself and Mr Asare Ansah.

In the case of **OKUDZETO ABLAKWA (NO. 2) v ATTORNEY GENERAL & ANOR (2012) 2 SCGLR 845 at 867**, the Court reiterated the age-old principle that a party who makes allegations has the burden to lead evidence to prove those allegations unless they are admitted by the other party.

See also:

ASHANTI GOLDFIELDS CO. LTD v WESTCHESTER RESOURCES LTD (2013) 56 GMJ84 CA

TAKORADI FLOUR MILLS v SAMIR FARIS (2005-2006) SCGLR 882

The next matter demanding this Court's attention is the Plaintiff's deposit of GHS 17,850.00 into the Defendant's bank account; a sum that has languished in the coffers of the Defendant for over five years. The Defendant, in paragraph 5 of its Statement of Defence, boldly asserts:

"The Defendant denies paragraphs 5 and 6 of the Statement of Claim and avers that it first became aware in June 2020 of any funds deposited by the Plaintiff into its account, upon the Plaintiff's own disclosure of his purported payment for 500 bags of cement."

Yet the cross-examination of the Plaintiff told a different tale, unfolding thus:

'Q: Do you know that as at May 2020, the price per bag of cement was GHS 38.00?

A: No. But the price they gave me was what I paid accordingly.

Q: I put it to you that the price per bag of GHACEM cement was GHS 38.00 and that the amount of GHS 17,850 you deposited into the Defendant's account, claiming it was for 500 bags, is unconscionable.

A: It is possible that prices of items can increase, but at the time I paid, that was the price I was given.'

In this court's opinion, the Defendant's claim of ignorance until contacted by Plaintiff's counsel in 2022 collapses under the weight of its own pleadings, which plainly admit that in June 2020 the Plaintiff approached them demanding delivery of the 500 bags, an encounter that starkly contradicts their plea of ignorance. This inconsistency cannot

be brushed aside as a mere oversight; it powerfully reveals the Defendant's own knowledge of the deposit at the time.

This Court is therefore compelled to find, and does so find, that as of 1st June 2020, the price per bag of GHACEM cement stood at GHS 38.00. By simple arithmetic, the Plaintiff's deposit of GHS 17,850.00 would have procured 470 bags of cement (GHS 17,850 ÷ GHS 38.00 = 469.736, rounded to 470).

Having allowed the Plaintiff's funds to remain idle in its possession for half a decade, the Defendant cannot now evade its responsibility. Justice delayed is, in this case, a debt unpaid.

Accordingly, in the interest of fairness and equity, it is hereby ordered as follows:

1. The Defendant shall, on or before 30th September 2025, deliver to the Plaintiff 470 bags of GHACEM cement;
2. Failing delivery within the aforesaid time, the Defendant shall pay to the Plaintiff the monetary equivalent of 470 bags of GHACEM cement at the prevailing market price as at the date of payment;
3. There shall be no order as to costs.